

Federal and Unitary Features of the Indian Union

India is different from the United States of America because in United States the federation is based on an agreement between different States, and the States have the right to secede from the Union.

The Indian Constitution has the features both of a federal and unitary forms of Government.

Federal features

1. Distribution of powers between Union and the States has been made as per the three lists.
2. The Union Government as well as the State Governments have to function strictly in accordance with the Constitution. They can neither alter the distribution of powers nor override the dictates of the Constitution.
3. Indian Constitution is entirely written. An amendment to it must be passed by the Parliament and if an amendment affects the federal structure it must be ratified by at least half the State Legislatures.
4. Like other federal states our country also has an independent Judiciary as an essential feature.

Unitary features of the Indian Constitution

1. In a federation, people enjoy dual citizenship, that of the Centre and of the State to which they belong. But the Indian Constitution provides every Indian with single citizenship.
2. The most important subjects are included in the Union List which has been allocated to the centre.
3. The centre can legislate on the subjects in the concurrent list.
4. Residuary powers belong to the Centre.
5. Single Constitutional Framework has been provided for the Centre as well as for the State.
6. The proclamation of National emergency can immediately turn the federal system of India into a Unitary one.

7.In a federation, each State should get equal representation irrespective of its size or population. But in the Rajya Sabha in India, States are represented on the basis of population. Besides, the President has the power to nominate twelve members to the Rajya Sabha.

8.The Governors of the States are appointed by the President and they continue to hold office only during his pleasure.

9.The Indian Constitution provides for single judiciary, a single system of civil and criminal law and command All India Services.

10.The authority of the Comptroller and Auditor General and the Chief Election Commissioner uniformly prevails over the Union as well as States.